

Capital One, N.A. v. Yadira Rodriguez, 25LC-1330

Hearing: Motion to Vacate Dismissal and Enter Judgment Pursuant to Settlement

Date: August 27, 2026

TENTATIVE RULING

Capital One, N.A. (Plaintiff) filed this collection action on November 7, 2025, against Yadira Rodriguez (Defendant). Defendant was served by personal service on November 15, 2025. In late December, 2025, the parties submitted a Stipulation Agreement setting up a payment plan and dismissal of the action subject to the Court retaining jurisdiction under Code of Civil Procedure section 664.6. On January 5, 2026, the Court dismissed the action “under [the] conditions stipulated to by the parties, with the court retaining jurisdiction under Code of Civil Procedure section 664.6.”

Plaintiff now seeks to set aside the dismissal and have judgment entered pursuant to the terms of the Stipulation Agreement. No opposition has been filed despite proof of service. Defendant has never appeared in the action and has not provided an address to the Court or in the Stipulation Agreement. The Court requests Plaintiff submit a declaration confirming notice was served to Defendant’s proper address.

The motion is continued to September 16, 2026, at 9:00 a.m. in Department 2. Plaintiff is to file a declaration at least one week prior to the hearing outlining its efforts to confirm Defendant’s address for proper service.